

Subedar Singh v. State of U.P. — recovery notice, hearing before EE, Section 127

High Court of Judicature at Allahabad · Division Bench · 18 January 2020 · Writ-C No. 1631 of 2020 · WRIT - C No. - 1631 of 2020 · **Writ disposed; EE to hear objections and pass a speaking final order; coercive action stayed; Section 127 if aggrieved.**

HEADNOTE

On a writ to quash a recovery notice and restore supply, the Allahabad High Court did not try the notice or alleged Supply Code breaches. It directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for seven weeks or until disposal of the objection, and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Subedar Singh filed a writ petition in the Allahabad High Court seeking to quash a recovery notice dated 19 November 2019 issued by the Executive Engineer, restoration of his electricity connection, and a stay of coercive recovery. He alleged that the respondents were taking coercive action without any opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The Court did not try the notice or the alleged Code breaches on the merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to Section 127 after speaking final order on recovery

HOLDING

Without deciding the recovery notice or alleged non-compliance with the U.P. Electricity Supply Code, 2005, the Court directed the petitioner to appear before the Executive Engineer on 5.2.2020 with objections and evidence; required a speaking and reasoned final order within four weeks; stayed coercive action for seven weeks or until disposal of the objection, whichever earlier; and held that if aggrieved by that final order the petitioner may appeal under Section 127 of the Electricity Act, 2003. Default in appearance revives the recovery citation; default in filing the objection vacates the stay. ¶ 1-2

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to pass a speaking final order on the consumer's objections to the recovery notice, the Court left any further challenge to an appeal under Section 127 rather than deciding the bill or restoration on the writ. ¶ 1-2

alternative-remedy-section-127-appeal The writ was disposed with a direction that an appeal under Section 127 would lie against the Executive Engineer's final order, without examining the recovery or disconnection on the merits.

¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 19.11.2019

Certiorari to quash the notice was not granted or refused on the merits. ¶ 1-2

NOT DECIDED — COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The allegation of non-compliance was recorded but not decided. ¶ 1-2

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.